



PANAMA MARITIME AUTHORITY
Directorate General of Merchant Marine
International Representative Office, N.Y.

Merchant Marine Circular No.147

Panama Maritime Authority

To:	SHIPOWNERS / OPERATORS, RECOGNIZED ORGANIZATION
Subject:	Acceptance of the Exemption provision for the Vegetable Oils in the Revised MARPOL Annex II and IBC/BCH Code as amended
Reference:	Resolutions MEPC.118(52) and MSC.176(79)

BACKGROUND

1. The purpose of this Merchant Marine Circular is to provide Panamanian flagged ships with general guidelines for the implementation of the Revised Annex II (Regulations for the Control of Pollution by Noxious Liquid Substances in Bulk) of the “International Convention for the Prevention of pollution from Ships 1973 modified by Protocol of 1978, as amended by the 1997 Protocol” adopted as Resolution MEPC.118(52) and the amendments to the International Code for the Construction and Equipment of Ships Carrying Dangerous Chemicals in Bulk (IBC Code) adopted by Resolution MSC.176(79).
2. Resolutions MEPC.118(52) and MSC.176(79) will enter into force on 1 January 2007, they are applicable to all ships carrying dangerous chemicals or noxious liquid substances in bulk, regardless of date of construction. All applicable requirements shall be met by 1 January 2007. Substances have been re-classified in accordance with the new classification criteria resulting in more stringent pollution categories and Ship Types in many cases.
3. Vegetable oils are currently listed in Chapter 18 of the IBC Code “List of products to which the Code does not apply”. Actually they can be carried on tankers not complying with the requirements of the Chemical Codes. In order to carry vegetable oils the tankers should be certified under the provisions of MARPOL Annex II. With the re-classification of substances, these cargoes have been individually identified and listed in Chapter 17 of the IBC Code which specifies that they should be carried onboard ship type 2 chemical tankers.
4. Certain noxious liquid substances which possess properties similar to those of MARPOL Annex I cargoes, also known as Oil-like Substances, are allowed to be carried on oil tankers under the provisions of Regulation 14 of MARPOL Annex II of the present convention. From January 1, 2007, these cargoes can only be carried on chemical tankers which fully comply with the Chemical Codes, as appropriate, and any residues must be discharged in accordance with the provisions of MARPOL Annex II.

APPLICABILITY

1. The Panama Maritime Authority supports the exemption provisions of Regulation 4.1.3 of MARPOL 73/78, Annex II (revised). According to regulation 4.1.3 ship type 3 chemical tankers which fully comply with the IBC Code and MARPOL Annex II will require an exemption certificate issued by the administration in order to carry individually identified vegetable oils. The exemption shall be granted to those vessels which meet the provisions described in Regulation 4.1.3 of MARPOL 73/78, Annex II (revised). The exemption certificate shall be issued with the same expiration date as the Certificate of Fitness for the Carriage of Dangerous Chemicals in Bulk (CoF).
2. The Panama Maritime Authority remain to all Class Societies / Recognized Organizations to proceed according to the requirements and specification required in the revised Annex II and IBC code.

INSTRUCTIONS

1. All applications shall be submitted to the Panama Maritime Authority head quarter office in Panama . The following documents shall be submitted to the review by administration:
 1. Application Form. (Attached to this circular).
 2. Copy of the certificate of Fitness for the carriage of Dangerous Chemicals in bulk (CoF).
 3. Statement of Class Society / Recognized Organization indicating that the vessel is in compliance with all the technical requirements applicable under the reg. 4.1.3 of Marpol 73/78, Annex II (revised).
 4. Steel Plan, showing Midship section (or transverse section or tank arrangements), Capacity Plan.
 5. Declaration of Product with the full particular specify by the operator (ISM).
2. In case the Panama Maritime Authority has been provided previously with the plans and drawing required above, the item 1.4 may be avoided.
3. The exchange of communication for the intention to apply for the subject exemption shall be sent in electronic format (except the plans), or hard copy and addressed to General Directorate of Merchant Marine,
PIC Ing. Fidel Gonzalez F.
Email address: fgonzales@amp.gob.pa
Phone: (507) 501 5089
Fax: (507) 501 5091

Hard copy of the relative documents should be send to:

Panama Maritime Authority
General Directorate of Merchant Marine,
P.O. Box 5245 Panama 5
Republic of Panama

Tel: (507) 501 5010
Fax: (507) 501 5011

October, 2023 – Cancelled
December 2006



PANAMA MARITIME AUTHORITY
DIRECTORATE GENERAL OF MERCHANT MARINE
DEPARTMENT OF NAVIGATION AND MARITIME SAFETY

APPLICATION FOR EXEMPTION
Under regulation 4.1.3 Annex II Marpol 73/78
(***Incomplete applications will be declined***)

Vessel Name: _____

Type of Vessel: _____

Call Letters: _____

Gross Tonnage: _____

IMO No : _____

Year Keel date: _____

Name/Address/Tel & Fax of Operator
(to be included at all times)

Name of Company responsible for
receiving original documents and
paying for invoices (if different
from operators)

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1. Equipment and / or Regulation to be
exempted: _____

2. Reason for the exemption requested: _____

3. Regulation that confers authority for
exemption: _____

4. Validity of relevant full terms statutory certificate (please include
copy): _____

5. Class Society / Recognized Organization responsible for the issuance of the relevant statutory certificate: _____

6. Special Condition: _____

CANCELLED